

AIFC RULES ON CURRENCY REGULATION AND PROVISION OF INFORMATION ON CURRENCY TRANSACTIONS IN THE AIFC

**AIFC Rules No.6 of 2021
(with amendments as of 15 February 2024)**

Astana, Kazakhstan



1. General Provisions

- 1.1. These rules are the Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC (hereafter, the Rules).
- 1.2. These Rules commence on 1 December 2021.
- 1.3. These Rules have been developed in furtherance of paragraphs 3, 4 and 5 of Article 5 of the Constitutional Statute of the Republic of Kazakhstan "On the Astana International Financial Centre" dated December 7, 2015 No 438-V.

Footnote. Rule 1.3 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

- 1.4. The provisions of these Rules apply to:
 - (a) the AIFC participants, AIFC Bodies and their organisations;
 - (b) the AIFC banks;
 - (c) residents and non-residents of RK carrying out the transactions with the AIFC participants, AIFC Bodies and their organisations or using bank accounts opened in the AIFC banks;
 - (d) STB of RK to the extent of transactions regulated by these Rules.

Transactions that are not regulated by these Rules are carried out by STB of RK in accordance with the legislation of RK and by the AIFC banks in accordance with the Acting Law of the AIFC.

Footnote. Rule 1.4 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

- 1.5. Definitions
 - 1.5.1. Schedule 1 (Terms and Definitions) contains definitions of the key terms used in these Rules.
 - 1.5.2. Other terms and definitions used in these Rules and not defined by Schedule 1 to these Rules are used in accordance with the definitions stipulated by the Acting Law of the AIFC and the legislation of RK.
- 1.6. Objectives

The Rules define:

- (a) conditions and procedure for currency transactions related to the provision of financial services by the AIFC participants;
- (b) conditions and procedure for currency transactions related to the provision of professional services by the AIFC participants;
- (c) conditions and procedure for currency transactions that do not fall under subparagraphs (a) and (b) of this paragraph on the territory of the AIFC;
- (d) list of financial and professional services provided by the AIFC participants to the residents of RK that are not the AIFC participants.



2. Currency Residency in the AIFC

2.1 Currency Residency

For the purposes of these Rules:

- (a) the AIFC participants are recognised as the residents;
- (b) natural and legal entities are recognised as the residents in accordance with terms and definitions given in Schedule 1;
- (c) natural and legal entities are recognised as non-residents in accordance with terms and definitions given in Schedule 1.

3. Rights of the AIFC participants, the AIFC Bodies and their organisations. Transactions in the AIFC

3.1 Rights of the AIFC participants, the AIFC Bodies and their organisations

3.1.1 Unless otherwise prohibited under the Acting Law of the AIFC and (or) the legislation of RK, the AIFC participants have the right to provide financial and related services to the residents that are not the AIFC participants only in accordance with Schedule 2 to these Rules.

3.1.2 The AIFC participants (except for the AIFC banks), the AIFC Bodies and their organisations have the right to:

- (a) open bank accounts in foreign banks in any currency and make payments and money transfers using such accounts, subject to the requirements specified under the Acting Law of the AIFC and (or) the legislation of RK;
- (b) open bank accounts in the AIFC banks (except for Islamic banks) in foreign currency only and make payments and money transfers using such accounts, subject to the requirements specified under the Acting Law of the AIFC;
- (c) open bank accounts in the STB of RK or in the Islamic banks of the AIFC in any currency and make payments and money transfers using such accounts, subject to the requirements specified under the Acting Law of the AIFC and (or) the legislation of RK.

3.1.3 The AIFC banks, including Islamic banks of the AIFC, have the right to:

- (a) open bank accounts in other banks, including foreign banks, and to transfer own funds using such bank accounts in national or foreign currency, subject to the requirements specified under the Acting Law of the AIFC and the legislation of RK;
- (b) open bank accounts for residents being the AIFC participants and non-residents, subject to the requirements of subparagraph (b) of paragraph 3.1.4 of these Rules and make payments and (or) money transfers using such accounts, subject to the requirements set out in these Rules;
- (c) open correspondent accounts in the STB of RK in the national and foreign currency in accordance with the procedure established by the legislation of RK and to carry out transactions using such correspondent accounts subject to the requirements set out in these Rules and (or) the legislation of RK;



- (c) open savings (deposit) accounts in foreign currency for non-residents and the AIFC participants the controlling shareholder (controlling shareholders) of which is non-resident;
- (e) carry out transactions envisaged by Schedule 4 to these Rules through their correspondent accounts in national currency in STB of RK.

Footnote. Subrule 3.1.3 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

3.1.4 The AIFC banks (except for Islamic banks of the AIFC) are prohibited to:

- (a) open bank accounts in the national currency for residents, including those being the AIFC participants and non-residents;
- (b) open savings accounts (deposits) for residents, including those being the AIFC participants, except for the case specified in subparagraph (d) of paragraph 3.1.3;
- (c) carry out transactions of residents related to export or import of goods (works, services), and (or) transactions subject to assignment of registration number in accordance with the currency legislation of RK;
- (d) carry out exchange transactions under instructions of clients using national currency, except for the cases of executing the instructions of clients as part of transactions set out in Schedule 4 to these Rules;
- (e) make payments and (or) money transfers with respect to the services which are, under the Acting Law of the AIFC and (or) the legislation of RK, prohibited to be provided by the AIFC participants to the residents that are not the AIFC participants;
- (f) provide services to the residents that are not the AIFC participants, the provision of which is prohibited for the AIFC banks in accordance with the Acting Law of the AIFC and (or) the legislation of RK;
- (g) carry out transactions through correspondent accounts in the national currency in STB of RK that are not in the list set out in Schedule 4 to these Rules.

3.1.5 Islamic banks of the AIFC are prohibited to:

- (a) carry out transactions of residents related to export or import of goods (works, services) and (or) transactions subject to assigning of registration number in accordance with the currency legislation of the RK;
- (b) carry out exchange transactions under instruction of clients using the national currency;
- (c) make payments and (or) transfers of clients' money for the services not related to Islamic financing and (or) with the realisation of the project for which a client of the AIFC Islamic bank attracted financing from this bank;
- (d) provide services to residents that are not the AIFC participants, the provision of which for Islamic banks of the AIFC is prohibited in accordance with the Acting law of the AIFC and (or) the legislation of RK.

Footnote. Subrule 3.1.5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on



Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

3.2 Transactions of the AIFC Bodies, their organisations and the AIFC participants

Footnote. Rule 3.2 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

3.2.1 Transactions between the AIFC participants, AIFC Bodies and their organisations are carried out in the national or foreign currency, subject to the requirements stipulated by these Rules.

Footnote. Subrule 3.2.1 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

3.2.2 Transactions between the AIFC Bodies, their organisations or the AIFC participants (except for the AIFC banks) and non-residents are carried out in any currency at discretion of the parties in accordance with the requirements envisaged under the Acting Law of the AIFC and (or) the legislation of RK.

Footnote. Subrule 3.2.2 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

3.2.3 Transactions between the AIFC participants and residents that are not the AIFC participants are carried out in national or foreign currency in accordance with the requirements envisaged under the Acting Law of the AIFC and (or) the legislation of RK.

3.3 Provision of financial services by the AIFC participants

3.3.1 The AIFC banks provide financial services to the residents that are not the AIFC participants in accordance with the list of financial services set out in Schedule 2 to these Rules, subject to the Acting Law of AIFC and (or) the legislation of RK.

3.3.2 The AIFC participants, except for the AIFC banks, have right to provide financial services to other AIFC participants, the AIFC Bodies and their organisations, non-residents in accordance with the AFSA licence in national or foreign currency, subject to the following requirements:

- financial services to be rendered in the national currency are carried out using the bank accounts of the AIFC participants opened in STB of RK;
- financial services to be rendered in foreign currency are carried out using the bank accounts of the AIFC participants opened in the AIFC banks or STB of RK.

Footnote. Subrule 3.3.2 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

3.3.3 The AIFC participants, except for the AIFC banks, provide financial and related services to the residents that are not the AIFC participants in accordance with the list of financial services and in the currency set out in Schedule 2 to these Rules, subject to the Acting Law of the AIFC and (or) the legislation of RK and in compliance with the following requirements:



- financial and related services to be rendered in the national currency are carried out using the bank accounts of the AIFC participants opened in STB of RK;
- financial and related services to be rendered in foreign currency are carried out using the bank accounts of the AIFC participants opened in the AIFC banks or STB of RK.

3.4 Provision of professional services by the AIFC participants

3.4.1 The AIFC participants provide professional services to other AIFC participants, the AIFC Bodies and their organisations and non-residents in accordance with the list determined in the Schedule 2 of the AIFC General Rules, in any currency, subject to the following requirements:

- professional services to be rendered in the national currency are carried out using the bank accounts of the AIFC participants, the AIFC Bodies and their organisations opened in STB of RK;
- professional services to be rendered in foreign currency are carried out using the bank accounts of the AIFC participants, the AIFC Bodies and their organisations, opened in the AIFC banks or STB of RK.

Footnote. Subrule 3.4.1 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

3.5 The AIFC participants (except for the AIFC banks) carry out transactions related to export or import of goods (works, services), exchange transactions using the national currency and transactions subject to registration in accordance with the currency legislation of the RK, using bank accounts of the AIFC participants opened in STB of RK only.

3.6 The AIFC participants carry out transactions with residents that are not the AIFC participants in accordance with these Rules and (or) the currency legislation of RK.

3.7 The AIFC participants have right to provide professional services in foreign currency to the residents that are not the AIFC participants, only in accordance with the list set out in Schedule 3 to these Rules.

3.8 The AIFC participants, the AIFC Bodies and their organisations have the right to carry out operations for the formation of share capital through the STB of the RK in any currency and AIFC banks in foreign currency under the Acting Law of the AIFC.

Footnote. Part 3 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

4. Payments and (or) money transfers on transactions of residents and non-residents in the AIFC

4.1 Payments and (or) money transfers on foreign exchange transactions of the AIFC participants (except for the AIFC banks) are carried out through bank accounts in the AIFC banks and (or) the STB of RK in compliance with the conditions envisaged under the Acting Law of the AIFC and the legislation of RK.

4.2 The AIFC bank transfers money of the AIFC participants from their accounts in the AIFC bank to their accounts in the STB of RK, as well as from their accounts in STB of RK to their accounts in AIFC bank in foreign currency.

4.3 Payments and (or) money transfers for client transactions are made in accordance with the



following conditions:

- (a) The AIFC bank requests from the client identifying documents and information:
 - (i) currency contract (for transactions in the equivalent of over USD 10,000);
 - (ii) BIN;
 - (iii) from legal entities and organisations that are not legal entities – documents defining the country of registration and the founders of the organisation, if these documents were not submitted previously or have been changed;
- (b) The AIFC bank must have sufficient identification information about the client to determine client's residency, client's link to the AIFC public register and, if applicable, client's status as the AIFC participant;
- (c) The AIFC bank must have sufficient information about the transaction or operation for which the payment and / or transfer of money is carried out to determine, including but not limited to:
 - (i) country of registration or residence of the payer and beneficiary;
 - (ii) sender of the payment and / or money transfer and its ultimate beneficiary;
 - (iii) affiliation of the payer and the beneficiary (for the allocation of intra-corporate transfers and payments between affiliated parties);
 - (iv) economy sector for the payer and the beneficiary;
 - (v) purpose of the payment.
- (d) The AIFC bank must refuse to make payment and (or) to transfer money to the client if:
 - (i) payment and (or) money transfer is made in the national currency (for the AIFC banks that are not Islamic banks);
 - (ii) payment and (or) money transfer is made in the national currency and is not in respect of provision of Islamic finance services (for Islamic banks of the AIFC);
 - (iii) payment and (or) money transfer is made under the transactions stipulated by paragraphs 3.5 and 4.4 of these Rules;
 - (iv) payment and (or) transfer of money contravenes the Acting Law of the AIFC and (or) the legislation of RK.
- (e) This paragraph does not apply to payments and money transfers made between non-residents not registered in RK and (or) not operating in the territory of RK.

Footnote. Rule 4.3 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

- 4.4 Residents that are not the AIFC participants, are not entitled to carry out currency transactions, through the AIFC banks, related to export or import of goods (works, services), exchange transactions using the national currency, as well as transactions subject to registration in accordance with the currency legislation of RK. These transactions are carried out solely through the STB of RK or foreign banks to the extent permitted by the currency legislation of RK.



5 Exchange transactions in the AIFC

5. Purchase and (or) sale of foreign currency can be carried out only through the AIFC banks, brokers and (or) dealers of the AIFC licensed by AFSA to carry out exchange transactions, STBs of RK and foreign banks, subject to the following requirements:
- (a) purchase or sale of non-cash foreign currency is carried out on the basis of request indicating the purpose of purchase or sale;
 - (b) purchase or sale of non-cash foreign currency for the national currency is carried out solely through the STB of RK;
 - (c) purchase or sale of non-cash foreign currency for other non-cash foreign currency is carried out through the AIFC banks, brokers and (or) dealers of the AIFC licensed by AFSA to carry out exchange transactions, STBs of RK and foreign banks;
 - (d) purchase or sale of foreign currency in cash is carried out through STB of RK or through legal entities carrying out the activities solely through exchange offices on the basis of the NBRK licence for exchange transactions with foreign currency in cash, in accordance with the procedure established by the legislation of RK.

Footnote. Rule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

6. Provision of information on currency transactions in the AIFC for the purposes of currency regulation

- 6.1 The list and procedure for providing information on carried out transactions established in accordance with Schedule 5 to these Rules.

Footnote. Rule 6.1 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

7. Exchange of information between the AIFC and NBRK bodies

- 7.1 Procedure for information interaction

The procedure for exchanging information on the matters related to currency transactions carried out in the AIFC is determined in accordance with Schedule 5 to these Rules.

8. Confidentiality

Any commercial, banking and other secrets, protected by the Acting Law of the AIFC, that the AIFC participants, their employees and agents, the AIFC Bodies and their organisations became aware of while conducting the transactions both on their behalf and as instructed by other persons must be kept confidential.

Footnote. Part 8 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

9. Responsibility for Rules violation

- 9.1 Violations

The AIFC participant who:

- (a) commits an action prohibited under the Acting Law of the AIFC and (or) the legislation of



RK;

- (b) does not commit an action that is required under the Acting Law of the AIFC and (or) the legislation of RK; or
- (c) otherwise contravenes the Acting Law of the AIFC and (or) the legislation of RK, commits violation of these Rules, which entails responsibility established by the Acting Law of the AIFC, the legislation of RK and the AFSA policy.

9.2 In case of non-submission or late submission by the AIFC participants of the reporting provided by these Rules, the AFSA will apply measures to them in accordance with subsection 7.1.3 of AIFC Fess Rules.

Footnote. Part 9 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



TERMS AND DEFINITIONS

- 1) AFSA – Astana Financial Services Authority;
- 2) ARDFM – Agency of the Republic of Kazakhstan for Regulation and Development of Financial Market;
- 3) AIFC bank – the AIFC participant licensed by the AFSA to provide the following services, subject to the requirements established by these Rules:
 - (a) accepting deposits, granting the loans, ~~making payments~~ providing money services, opening and maintaining bank accounts;
 - (b) Islamic banking and Islamic financing (~~except for non-banking Islamic organisations~~);
- 4) STB of RK - an authorised bank recognised as such in accordance with currency legislation of RK;
- 5) national currency –national currency of the Republic of Kazakhstan;
- 6) NBRK – National Bank of the Republic of Kazakhstan;
- 7) non-residents – legal and natural entities recognised as non-residents under the Law of the Republic of Kazakhstan "On Currency Regulation and Currency" Control";
- 8) AIFC Bodies – as defined in Article 9 of the Constitutional Statute of the Republic of Kazakhstan "On the Astana International Financial Centre";
- 9) RK – Republic of Kazakhstan;
- 10) for the purposes of currency regulation the following persons are recognised as residents of the Republic of Kazakhstan:
 - (a) legal and natural entities as well as branches (representative offices) of foreign entities recognised as residents under the Law of the Republic of Kazakhstan "On Currency Regulation and Currency Control";
 - (b) AIFC participants.
- 11) AIFC participants – legal entities registered in accordance with the Acting Law of the AIFC as well as other legal entities accredited in the AIFC;
- 12) KASE – JSC "Kazakhstan Stock Exchange";
- 13) Controlling shareholder –a legal entity or individual who is a shareholder of an AIFC Participant and directly owns 50% or more of the voting shares/participation interests in the authorised capital of the AIFC Participant, as well as a legal entity and/or individual together with another legal entity or individual affiliated with it (them), who are shareholders of the AIFC Participant and together own 50% or more of the voting shares/participation interests in the authorised capital of the AIFC Participant;
- 14) Credit provider – the AIFC participant, licensed by the AFSA to provide services for granting the loans, subject to the requirements established by these Rules;



- 15) AIFC Islamic bank is the AIFC participant, except AIFC bank, that has a license from the AFSA to provide banking services, accept deposits and (or) open and maintain bank accounts in accordance with the principles of Islamic financing in the territory of the AIFC;
- 16) Islamic financial organisation is the AIFC participant, with the exception of the AIFC Islamic bank, the exclusive activity of which is the provision of financial services that comply with the principles of Islamic financing, based on license of AFSA;
- 17) AIFC Broker and (or) Dealer - an AIFC participant licensed by AFSA to carry out investment transactions as an Agent and (or) Principal.

Footnote. Schedule 1 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



**LIST OF FINANCIAL SERVICES PROVIDED BY THE AIFC PARTICIPANTS TO THE
RESIDENTS THAT ARE NOT THE AIFC PARTICIPANTS**

No.	Name of the service	Currency
1	Banking, credit and payment services	
1.1	islamic banking carried out by Islamic banks and Islamic financing carried out by Islamic banks and islamic financial organisations	Any currency
1.2	loans to legal entities of the Republic of Kazakhstan	Foreign currency
1.3	opening and maintaining current bank accounts for clients (for lending and investment banking services)	Foreign currency
1.4	services for accepting and making payments and (or) money transfers using current bank account (within the permitted types of services)	Foreign currency
1.5	leasing services for legal entities of RK, including business entities (farms, and other legal entities engaged in the agro-industrial complex and road transport infrastructure)	Any currency
2	Insurance	
2.1	Direct voluntary insurance	
2.1.1.	air transport insurance	Any currency
2.1.2	water transport insurance	Any currency
2.1.3	space objects insurance	Any currency
2.1.4	insurance of cargo related to air transport, water transport and space objects	Any currency
2.1.5	legal liability insurance of air transport owners	Any currency
2.1.6	legal liability insurance of water transport owners	Any currency
2.1.7	legal liability insurance of space objects owners	Any currency
2.2	Reinsurance activities	
2.2.1	acceptance of all risks from Kazakhstani insurers for reinsurance	Any currency
2.3	Reinsurance broker's activity	
2.3.1	Kazakhstani insurers have the right to transfer insurance risks for reinsurance through the insurance broker- the AIFC participant	Any currency
2.4	Additional types of insurance	
2.4.1	insurance of guarantees and bails	Any currency
2.4.2	insurance of court costs	Any currency
2.4.3	title insurance	Any currency
2.4.4	islamic insurance	Any currency
2.5	New types of specific risks insurance	
2.5.1	catastrophe risks	Any currency
2.5.2	climate -related risks	Any currency
2.5.3	cyber risks	Any currency
2.5.4	terrorism-related risks	Any currency
2.5.5	political risks	Any currency
3	Investment services	
3.1	Investment banking services	
3.1.1	underwriting (placement of securities during IPO / SPO at the AIX, foreign stock exchanges)	Any currency
3.1.2	financial consulting (M&A structuring, private equity, restructuring, hedging)	Any currency
3.2	Dealer activity	
3.2.1	dealing in Investment as Principal (making deals for own benefit)	Any currency
3.3	Brokerage services (conclusion of transactions in the interests of the client)	
3.3.1		Any currency



3.3.2	brokerage services for Kazakhstani securities and financial instruments if the AIFC participant has the appropriate ARDFM license and (or) direct access to settlements at the Central Securities Depository JSC and (or) direct access to settlements of the central counterparty	Any currency
3.4	Providing custody services (nominal holding, accounting and safeguarding of securities)	
3.4.1	providing custody of the securities issued in accordance with foreign legislation and Acting Law of the AIFC	Any currency
3.4.2	providing custody by the AIFC participant in respect to Kazakhstani securities provided that the AIFC participant has relevant ARDFM licence	Any currency
3.4.3	settlement and depository services or custodial services of the AIFC Central Depository in respect to all securities included in the Official list of the AIFC Exchange ¹ and foreign securities	Any currency
3.5	Managing Investment (including investment funds)	
3.5.1	in relation to clients (investors) who are citizens and legal entities of the Republic of Kazakhstan investing in securities of the funds incorporated in the AIFC included in the Official List of the AIFC Exchange or KASE and managed by management companies licensed by AFSA. in relation to clients (investors) who are citizens and legal entities of the Republic of Kazakhstan, investing in securities of funds created in the AIFC, not included in the Official List of the AIFC Exchange or KASE and managed by management companies licensed by the ARDFM	Any currency
3.5.2	in relation to clients (investors) who are professional investors and have financial assets in the equivalent of not less than USD 150 000, when transferring the investments under the management or investing in securities of the funds incorporated in the AIFC and managed by fund manager licensed by the AFSA The requirements of this subparagraph do not apply to transactions made prior to commencement of these Rules.	Any currency
3.6	Trust services	
3.6.1	trust services (provision of services related to trust creation and management) without restrictions	Any currency
3.7	Crowdfunding services	
3.7.1	operating an investment crowdfunding platform	Any currency
4	Services with digital assets *	
4.1	operating a digital assets platform (crypto exchange)	Any currency
4.2	dealer services with digital assets on the digital asset exchange	Any currency
4.3	brokerage services with digital assets on the digital asset exchange: - in relation to clients (investors) who are retail investors with a monthly limit of USD 1 000 equivalent; - in relation to clients (investors) who are professional investors without restrictions	Any currency
4.4	custody services with digital assets	Any currency

¹ Official List – as defined in AIFC Act No. FR0017 dated April 29, 2018 “AIFC Glossary”



4.5	investment management of digital assets in relation to clients (investors) who are professional investors and have financial assets in the equivalent of not less than USD 150 000, when transferring investments or investing in digital assets (crypto assets) of funds established in the AIFC and managed by fund managers, licensed by the AFSA	Any currency
* Note: the services specified in this section are provided (operations are carried out) in accordance with the Procedure for interaction between the digital assets exchange and (or) the AIFC participant, who has a license to carry out activities related to digital assets with STBs of RK, after its approval by the AIFC act in agreement with the NBRK and ARDFM (in accordance with paragraph 5 of Article 4-1 of the Constitutional Statute of the Republic of Kazakhstan dated December 7, 2015 No. 438-V "On the Astana International Financial Centre).		

Footnote. Schedule 2 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



**LIST OF RELATED SERVICES PROVIDED BY THE AIFC PARTICIPANTS TO THE
RESIDENTS THAT ARE NOT THE AIFC PARTICIPANTS**

No.	Name of the service	Currency
1	Arranging Custody	
1.1	intermediary consulting services, collecting and processing customer payments disclosure and settlement of agreement terms between the custodian and the person who receives the custody	Any currency
2	Advising on Investments	
2.1	giving advice to a person in his capacity as an investor or potential investor on the merits of his buying, selling, holding, subscribing for or underwriting a particular investment	Any currency
3	Arranging Deals in Investments	
3.1	making arrangements with a view to another person buying, selling, subscribing for or underwriting an investment	Any currency
4	Advising on a Credit Facility	
4.1	giving advice to a person in his capacity as a borrower or a potential borrower, on the merits of his entering into a particular credit facility	Any currency
5	Arranging a Credit Facility	
5.1	collecting and processing commissions, fees, and other payments, assisting the lender in placing funds and the borrower in obtaining credit facility, agreement and settlement of the terms of the contractual relationship between the lender and the borrower, transmission of instructions or confirmations concerning credit facility	Any currency
6	Services of Providing Investment Fund Establishment and Administration	
6.1	assets valuation and calculation of the value of assets, monitoring and reconciliation of transactions, communication with stakeholders	Any currency
7	Acting as Trustee of a fund	
7.1	holding the assets of a Fund on trust for the unitholders	Any currency
8	Managing a restricted profit sharing investment account based on Islamic financial contract	
8.1	managing an investment account (portfolio, fund), involving restriction of investments only within the Islamic Financial Contract with profit/loss sharing between the management company and the holder of the Islamic account (client)	Any currency



Schedule 3

**THE LIST OF PROFESSIONAL SERVICES THAT CAN BE PROVIDED BY THE AIFC
PARTICIPANTS TO THE RESIDENTS THAT ARE NOT THE AIFC PARTICIPANTS, IN ANY
CURRENCY**

No.	Name of the professional service
1	Legal services
2	Audit services
3	Accounting services



Schedule 4

**LIST OF TRANSACTIONS THAT THE AIFC BANKS ARE ENTITLED TO CARRY OUT THROUGH
THEIR CORRESPONDENT ACCOUNTS IN NATIONAL CURRENCY IN STB OF RK**

No.	Type of transaction
1	Accepting and transferring money on the bank's own transactions
2	Execution of clients ' instructions on payment of taxes and obligatory payments to the budget, wages, lease of premises as well as execution by the AIFC bank of collection orders (tax authorities and bailiffs) brought forward to the client's current bank account
3	Payment of brokerage commissions, listing and other exchange fees for securities transactions in national currency at the AIFC Exchange and KASE
4	Settlements on transactions and payments on securities in national currency at the AIFC Exchange and KASE exchange
5	Settlement of transactions and payments on financial instruments in the national currency, including the securities being in nominal holding of the AIFC banks and transferred for custody in the STB of RK
6	Payment for consulting services provided by the AIFC bank

Footnote. Schedule 4 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



**THE PROCEDURE FOR PROVIDING INFORMATION
ON CURRENCY TRANSACTIONS IN THE AIFC**

1. GENERAL PROVISIONS

- 1.1. This Schedule sets out requirements for the AIFC participants to provide information for purposes of currency regulation on currency transactions carried out by them, including on behalf of clients, as well as for the STB of RK on currency transactions carried out on behalf of the AIFC participants.
- 1.2. The information on currency transactions including client operations provided by the AIFC participants includes:
 - (a) information on payments and (or) money transfers on currency transactions carried out by the AIFC banks, including on behalf of clients, as well as by STB of RK - on behalf of the AIFC participants;
 - (b) information on resident clients' transactions and the status of their accounts provided by the AIFC banks;
 - (c) information on deals and transactions carried out by the AIFC participants, including on behalf of clients, that affected the change in requirements for non-residents and obligations in front of them;
 - (d) information on transactions with securities and derivatives carried out by the AIFC participants with non-residents;
 - (e) information on income accrued and received from foreign exchange transactions with financial instruments of the AIFC participants .
- 1.3. Information on currency transactions carried out, including on behalf of clients, is provided by the AIFC participants and STB of RK to the AFSA in the form of regular reports, the format and timing of which are determined by these Rules, or at the request of the AFSA.
- 1.4. The AIFC participants provide the AFSA with the data and information in accordance with these Rules electronically through secure communication channels with confirmation by an electronic digital signature.
- 1.5. The AIFC participants are responsible for non-submission, late submission, as well as the provision of false data in accordance with the Acting Law of the AIFC.
- 1.6. The AIFC Bodies and their organisations include information about their own transactions in the reports submitted by the AFSA to the NBRK on the transactions carried out by the AIFC participants.
- 1.7. The data in the reports related to monetary obligations and payments (transfers) of money are reflected in USD. Unless otherwise indicated, if the currency of the obligation or payment (transfer) of money differs from the USD, the equivalent in USD is calculated using the market exchange rate at the date of the transaction.
- 1.8. Zero values are provided for types of operations prohibited for the AIFC participants provision of information on which is required by these Rules.
- 1.9. For all types of reporting provided by the AIFC participants, including AIFC banks, and STBs of RK to the AFSA, in the absence of transactions, the provision of information on which is provided



for by these Rules, during the reporting period, it is necessary to submit zero values reports to the AFSA. This paragraph does not apply to Annex 4 of Schedule 5 of these Rules.

Footnote. Part 1 of the Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

2. TERMS AND DEFINITIONS

- 2.1. For the purposes of this Schedule of the Rules, the key definitions specified in the Rules on Currency Regulation in the AIFC are used, as well as the following definitions:
- (a) the object of investment is a legal entity, investment fund, whose securities (votes of participants) are being acquired (acquired), as well as organisations to whose property contributions are being made (were made). In the case of depositary receipts, the object of investment is an issuer of the security that is their underlying asset;
 - (b) own transactions – currency transactions of a resident who is a party to an agreement, carried out on his own behalf and at his own expense.
- 2.2. Accepting Deposits is a type of regulated activity, as defined in paragraph 17 of Schedule 1 of the AIFC General Rules.
- 2.3. Providing Custody is a type of regulated activity, as defined in paragraph 5 of Schedule 1 of the AIFC General Rules.

3. THE PROCEDURE FOR PROVIDING INFORMATION ON CURRENCY TRANSACTIONS BY THE AIFC BANKS AND STB OF RK

- 3.1. AIFC bank and STB of RK provide to the AFSA the following:
- (a) a report on payments and (or) money transfers made on foreign currency transactions, including on behalf of the AIFC participants, made on the AIFC territory, for an amount equal to or exceeding the equivalent of USD 50,000 in accordance with Annex 1 to this Schedule. The report is submitted monthly no later than the 15th (fifteenth) day of the month following the reporting month;
 - (b) a report on cash flows at clients' bank accounts in foreign currency opened in AIFC banks, data on cash balances on them, in accordance with Annex 2 to this Schedule. The report is submitted monthly no later than the 10th (tenth) day of the month following the reporting month;
 - (c) a report on the bank accounts of the AIFC participants who have opened deposit accounts in STBs of RK in the form in accordance with Annex 5 to this Schedule. The report is submitted quarterly no later than the 10th (tenth) day of the month following the reporting quarter.
- 3.2. In order to clarify the circumstances of currency transactions, the AFSA has the right to request from the AIFC bank the provision of a contract on the basis and (or) pursuant to which a payment and (or) money transfer was made or a corresponding obligation of the AIFC bank arises.
- 3.3. The AFSA, no later than the 18th (eighteenth) day of the month following the reporting month, provides information to the NBRK in the form of Annex 1 to this Schedule and no later than the 15th (fifteenth) day of the month following the reporting month, provides information to the NBRK in the form of Annex 2 to this Schedule electronically via secure communication channels with confirmation by electronic digital signature.

Footnote. Part 3 of the Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



**4. PROCEDURE FOR PROVIDING INFORMATION BY THE AIFC PARTICIPANTS PROVIDING
CUSTODIAN, DEPOSITORY, DEALER AND BROKERAGE SERVICES**

- 4.1. The AIFC participants providing dealer, and (or) brokerage; custodian; depository services in accordance with the AFSA's licence (hereinafter referred as AIFC participants), quarterly no later than the 15 (fifteenth) day of the month following the reporting month, submit reports on securities to the AFSA in accordance with Annex 3 to this Schedule.

The AFSA submits the participants' reports on Annex 3 to the NBRK no later than the 20th (twentieth) day of the month following the reporting quarter.

The AFSA, no later than the 10th day of the second month following the reporting quarter, provides to the NBRK in accordance with Annex 6 to this Schedule data on the volume of investments managed by AIFC participants providing investment management services.

Footnote. Paragraph 4.1 of Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

- 4.2. The report is submitted on the AIFC participants' own transactions and transactions of their clients. AIFC participants providing dealer and/or brokerage; custodial services in accordance with the Committee's license shall not provide data on transactions conducted on behalf of the following clients

- which are other participants of the AIFC;
- Joint Stock Company Development Bank of Kazakhstan;
- professional participants of the securities market of the Republic of Kazakhstan, having an appropriate license of the Agency of the Republic of Kazakhstan on Regulation and Development of Financial Market.

Footnote. Paragraph 4.2 of Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

- 4.3. The report reflects data on transactions carried out during the reporting period.

- 1) with securities issued by residents in the Republic of Kazakhstan and owned by a non-resident client of an AIFC participant (transaction code - 1111);
- 2) with securities issued by non-residents and owned by an AIFC participant and a client-resident of an AIFC participant (transaction code - 2220);
- 3) with securities issued by residents abroad and belonging to the AIFC participant or client-resident of the AIFC participant (operation code 2120);
- 4) with securities issued by residents abroad and belonging to the client-nonresident of the AIFC participant (transaction code - 2121).

The report provided data on the number of securities, their value at the beginning and end of the reporting period, and, if available, investment income from the ownership of securities and service fees, including in the absence of transactions in the reporting period.

Transactions of securities repurchased (direct and reverse repurchase agreements) are not reflected in Annex 3 to this Schedule. Data at the beginning and end of the reporting period on the security involved in repo transactions are reflected by the original owner of the security.



Footnote. Paragraph 4.3 of Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

4.4. The data is presented separately for each type of security by final beneficiary:

- A) country code - three-digit numerical code of account owner's country – final beneficiary in accordance with national classifier of the Republic of Kazakhstan "Codes for representation of names of countries and their administrative-territorial subdivisions";
- B) sector code of account owner-beneficiary:
 - «1» central government;
 - «2» regional and local governments;
 - «3» central (national) banks;
 - «4» other depositary organisations;
 - «5» other financial organisations;
 - «6» state non-financial organisations;
 - «7» non-state non-financial organisations;
 - «8» non-profit organisations serving households;
 - «9» households.

An AIFC participant providing custody services specifies the country and sector code for its AIFC depositary customer in an aggregated manner.

Footnote. Paragraph 4.4 of Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

4.5. Financial transactions include transactions between a resident and a non-resident involving a change of economic ownership of securities and are recorded at the value specified in the transaction (if not, the price quoted in the market on the date of the agreement): purchase (sale) on the primary and secondary securities markets, crediting/writing of securities by mutual agreement; receipt (transfer) of securities as a gift, by inheritance.

Footnote. Paragraph 4.5 of Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

4.6. Other transactions include:

- 1) Transactions between a resident and a non-resident which do not result in the transfer of ownership of securities (transfer of securities into nominal holding, transfer of clients from one nominee holder or registrar to another nominee holder or registrar);
- 2) Transactions between residents and non-residents with transfer of ownership, except those classified as financial transactions: alienation of securities by court decision;
- 3) Transactions between non-residents with transfer of ownership (purchase at the secondary market, sale at the secondary market);
- 4) Transactions between residents with transfer of ownership (purchase on the secondary market, sale on the secondary market).

Footnote. Paragraph 4.6 of Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



- 4.7. Value changes in column 20 include changes resulting from exchange rate fluctuations (exchange rate differences in the case of securities denominated in currencies other than United States dollars (hereinafter the "US dollars") as well as the market value of the security.

In order to correctly reflect changes in value, the statistical form must first be completed in the currency of denomination, and only then are flows and stocks translated at the appropriate exchange rates to the US dollar. After completing all columns other than value changes in the accounting currency, column 20 is determined by the residual method:

column 20 = column 22 - column 7 - column 9 + column 11 - column 13 + column 15 - column 17 + column 19 for each line.

Footnote. Paragraph 4.7 of Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

- 4.8. Only data on debt securities are reflected in column 23:

- 1) accrual of announced fees for days of holding a security by the respondent or his/her client during the reporting period;
- 2) amortisation of premium or discount for the days of holding a security by the respondent or his client during the reporting period.

Footnote. Paragraph 4.8 of Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

- 4.9. Column 24 are reflected data on income received in the reporting period:

- 1) dividends received by the respondent or his/her client during the reporting period;
- 2) remuneration received by the respondent or his/her client during the reporting period upon repayment of accrued interest on debt securities by the issuer.

The income referred to in this paragraph are reflected in the amount including any fees or taxes withheld therefrom.

Footnote. Paragraph 4.9 of Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

- 4.10. Column 25 are reflected the fee income for brokerage, advisory, information and other services paid by a non-resident client to the respondent.

For the Depositary of AIFC, it is allowed to show fees and commissions in aggregate for each non-resident client of the Depositary. In this case, the fee is recorded for the security (at the highest amount at the end of the period) owned by the non-resident customer.

- 4.11. Purchases and sales of securities on the secondary market are reflected in columns 13 and 15 at the current market value, or the value corresponding to the price indicated by the buyer or seller customer.

- 4.12. The securities positions at the beginning of the reporting period in columns 6 and 7 are reflected equal to their positions at the end of the previous period. The securities position at the end of the reporting period in column 22 are reflected determined on the basis of the market price announced



on the organised securities market at the end of the reporting period.

- 4.13. In the case of securities for which transactions are executed on the unorganised market, the following prices shall be applied in order of preference to assess the position of securities at the end of the reporting period:
- (a) the price of the security on the last transaction;
 - (b) price of the security at purchase value, excluding acquisition related costs (brokerage fees, bank fees);
 - (c) the nominal value of the security.
- 4.14. Financial transactions and other items denominated in other foreign currencies are translated into US dollars at cross rates determined as follows:
- 1) the value at the beginning of the period is translated at the cross rate at the end of the preceding period;
 - 2) the value at the end of the period - at the cross rate at the end of the reporting period;
 - 3) financial and other operations, investment income and commissions - at cross-exchange rate as of the date of operation or at the average weighted cross-exchange rate for the reporting period.

Footnote. Part 4 of Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

5. THE PROCEDURE FOR PROVIDING INFORMATION ON CURRENCY TRANSACTIONS OF CAPITAL MOVEMENTS BY THE AIFC PARTICIPANTS

- 5.1. The AIFC participant provides the AFSA with information on the contract, on the basis of and pursuant to which capital movement transactions are carried out, for an amount equal to or exceeding the equivalent of 500,000 USD, in accordance with Annex 4 to this Schedule. The information is provided before the expiration of 30 (thirty) calendar days from the date of commencement of payments under this contract. For financial loans attracted by AIFC banks from non-residents, Part 1 of the form is completed in case of conclusion of an agreement for a period of more than 180 days.

If the party and (or) the currency of the contract change, the AIFC participant submits information to the AFSA in accordance with Annex 4 to this Schedule. The information is provided before the expiration of 30 (thirty) calendar days from the date of amendments to the contract.

Footnote. Paragraph 5.1 of Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.

- 5.2. At the request of the NBRK, the AIFC participants submit to the AFSA information on forecast data on repayment of debt on financial loans.
- 5.3. The AFSA provides information to the NBRK in the form of Annex 4 to this Schedule, and on the forecast data on repayment of debt on financial loans (if any) - monthly, no later the 10th day of the month following the reporting period.

Footnote. Paragraph 5.3 of Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



Annex 1 to Schedule 5

Report on executed currency transactions
(structure of payment information in the bank's report)

Name of AIFC Bank/STB of RK
(structure of payment information in the bank's report)

BIN of AIFC Bank/STB of RK

Frequency: monthly

Reporting period: _____ month _____ year

Submission deadline: before the 15th (fifteenth) day (inclusive) of the month following the reporting period

Form

1. Details of the currency contract		
Number of currency contract	Date of currency contract	Account number of currency contract
1.1	1.2	1.3

table continuation

2. Sender of money under payment document				
Name or surname, first name, patronymic (if any)	Business identification number (hereinafter referred to as BIN), individual identification number (hereinafter referred to as IIN)	Country code	Residency indicator	Economic sector code
2.1	2.2	2.3	2.4	2.5
...				

table continuation

3. Beneficiary of payment document				
3.1	3.2	3.3	3.4	3.5
Name or surname, first name, patronymic (if any)	BIN/ IIN	Country code	Residency indicator	Economic sector code
...				

table continuation

4. Information about currency transaction								
Date	Currency transaction reference	Currency transaction code	Payment purpose code (PPC)	Amount in currency units	Payment currency code	Payment indicator	Indicator of an intra-corporate money transfer	Indicator of transaction related to the withdrawal of money
4.1	4.2	4.3	4.4	4.5	4.6	4.7	4.8	4.9
...								

table continuation

5. Information about the organisation (bank) of the counterparty for the currency transaction		
Identification code of the organisation (bank) (BIC)	Name	Country code



5.1	5.2	5.3

table continuation

6. Sender of money under currency contract				
Name or surname, first name, patronymic (if any)	BIN, IIN	Country code	Residency indicator	Economic sector code
6.1	6.2	6.3	6.4	6.5

table continuation

7. The recipient of money under currency contract				
Name or surname, first name, patronymic (if any)	BIN/ IIN	Country code	Residency indicator	Economic sector code
7.1	7.2	7.3	7.4	7.5

table continuation

8. Note

Address

Phone

E-mail address

Type of activity

Executor

surname, name and patronymic (if any) signature, phone number
Manager or person authorised to sign the report

surname, name and patronymic (if any) signature, phone number
Date of signing the report " ____ " _____ 20__

(identification code) _____

Footnote. Annex 1 to Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



Guidance for Completing the Form

Report on executed currency transactions

1. The Form does not include information on the purchase (sale) of foreign currency in cash through exchange offices.

Information on payments and (or) money transfers on foreign exchange transactions made using payment cards is corrected by the AIFC Bank and (or) STB of the Republic of Kazakhstan as information about such payments and (or) money transfers is received from a resident or non-resident.

2. Parts 1, 6 and 7 of the Form are filled out in case of carrying out foreign currency transactions based on a currency contract.
3. Part 1 of the Form contains details of the currency contract. Column 1.3 is filled in if the currency contract has been assigned an account number.
4. Parts 2 and 3 of the Form contain information about the sender of money and the beneficiary in accordance with the payment document.

Columns 2.3 and 3.3 indicate the two-letter code of the country of registration (for a legal entity, branch (representative office) of a legal entity) or country of permanent residence (for an individual on the basis of citizenship or the right granted in accordance with the legislation of the Republic of Kazakhstan or a foreign state) of the sender of money, beneficiary in accordance with the national classifier of the Republic of Kazakhstan NC RK ISO 3166-1 "Codes for representing the names of countries and units of their administrative-territorial divisions. Part 1. Country codes".

Columns 2.4, 2.5, 3.4 and 3.5 are filled in in accordance with the rules for the application of codes of sectors of the economy and the purpose of payments, approved by the Resolution of the Board of the National Bank of the Republic of Kazakhstan dated August 31, 2016 No. 203, registered in the Register of State Registration of Regulatory Legal Acts under No. 14365, (hereinafter - Rules for the use of codes of sectors of the economy and the purpose of payments).

When depositing (withdrawing) cash from a bank account, in parts 2 and 3, information about the account holder is filled in, except for cases of depositing (withdrawing) cash by a third party to the bank account of an individual. When depositing cash by a third party to the bank account of an individual, in part 2, information about the person who deposits the money shall be filled, in part 3 - on the owner of the account.

When withdrawing cash from a bank account of an individual by a third party, information about the account holder shall be filled in part 2, information about the person who withdraws money shall be filled in part 3.

When AIFC Bank and (or) STBs of RK sell foreign currency, checks, bills of exchange, other payment documents or other currency valuables, part 2 of the Form reflects information about the AIFC Bank and (or) STBs of RK, part 3 of the Form - about the client-buyer. When the AIFC Bank and (or) STBs of RK purchase foreign currency, checks, bills, other payment documents or other currency valuables, part 2 of the Form reflects information about the client-seller, part 3 of the Form - about the AIFC Bank and (or) STBs of RK.

5. Part 4 of the Form contains information about the currency transaction.



Column 4.2 shall indicate the reference of the currency operation consisting of four parts:

- 1) the first part shall indicate the three-digit code of the STB RK or the code of the AIFC bank assigned by the Committee,
- 2) the second part shall indicate the code of the branch of STB RK or the code of the AIFC bank assigned by the Committee, consisting of three digits;
- 3) the third part shall indicate the serial number of the currency operation in the report;
- 4) the fourth part shall indicate the reporting date in the format "DDMMYYYY".

Column 4.3 shall be filled in in accordance with the table of currency transaction codes, which is an Annex to the explanation for filling out the form "Information on the currency transaction" of the Rules for the implementation of currency transactions in the Republic of Kazakhstan, approved by the Resolution of the Board of the NB RK dated March 30, 2019 No. 40.

Column 4.4 is filled in in accordance with the Rules for the use of codes of sectors of the economy and the purpose of payments.

In column 4.6, a three-digit alphabetic currency code is indicated in accordance with the national classifier of the Republic of Kazakhstan NC RK 07 ISO 4217 "Codes for representing currencies and funds".

In column 4.7, "01" is indicated - for sent payments or money transfers, operations for withdrawing cash foreign currency or selling by the AIFC Bank and (or) STB of RK foreign currency, checks, bills, other payment documents or other currency values, "02" - for incoming payments or money transfers, operations to credit foreign currency in cash or purchase by the AIFC Bank and (or) STB of RK foreign currency, checks, bills of exchange, other payment documents or other currency values.

In column 4.8, shall be indicated "1" if the payment and (or) money transfer is carried out between a legal entity and its structural divisions or between structural divisions of one legal entity, in other cases, shall be indicated "0".

Column 4.9 shall be filled in accordance with paragraphs 16-1 and 16-2 of Rules for carrying out currency transactions in the Republic of Kazakhstan as follows:

"1.1" - a financial loan providing for the provision of money by a non-resident to a resident (except for the STB of the RK), if the terms of the relevant currency agreement (initially or after amendments and (or) additions to the currency agreement) do not provide for the transfer of money to be received from a non-resident to the resident's bank accounts in the STB of the RK;

"1.2" - a financial loan that provides for the emergence of a resident's (except for the STB of the RK) claims against a non-resident for the return of money, if the terms of the relevant currency agreement (initially or after amendments and (or) additions to the currency agreement) do not provide for the transfer of money to be received from a non-resident to the resident's bank accounts in the STB of the RK;

"1.3" - a financial loan providing for the provision of money by a resident to a non-resident who is not an affiliated person, if the terms and conditions of the relevant currency agreement (initially or after amendments and (or) additions to the currency agreement) do not provide for the payment of remuneration for the use of the subject of the financial loan;

"1.4" - export operations, if the terms of the respective currency agreement (initially or after amendments and (or) additions to the currency agreement) stipulate that the term of fulfillment of the non-resident's obligations to pay for exports exceeds 720 (seven hundred and twenty) days



from the date of fulfillment of obligations by the resident;

"1.5" - import operations, if the terms of the respective currency agreement (initially or after amendments and (or) additions to the currency agreement) stipulate that the term of fulfillment of the non-resident's obligations on delivery of goods (performance of work, rendering of services) or on return of money, including advance payment or prepayment amount in full (in case of non-fulfillment by the non-resident of its obligations on import), exceeds 720 (seven hundred and twenty) days from the date of fulfillment of obligations by the resident;

"1.6" - transfer of money by a resident to a non-resident professional participant of the securities market, performing currency transactions on clients' instructions, for an amount exceeding 50,000 (fifty thousand) US dollars in equivalent;

"1.7" - transfer by a resident of money to his/her own account abroad in an amount exceeding 50,000 (fifty thousand) US dollars in equivalent;

"1.8" - gratuitous money transfer made by a resident in favor of a non-resident for the amount exceeding 50,000 (fifty thousand) US dollars in equivalent;

"2" - payments and (or) money transfers of one person in a calendar month under two or more currency contracts concluded with the same non-resident for the total amount exceeding the threshold value above which such currency contracts shall be subject to assignment of the accounting number;

"0" - in other cases.

6. Part 5 of the Form contains information about the organisation (bank) of the counterparty for the currency transaction - the organisation (bank) of the sender of money for received payments and (or) money transfers, the organisation (bank) of the beneficiary for sent payments and (or) money transfers. For intra-bank currency transactions, information on the reporting AIFC Bank and (or) STB of the RK is indicated. If there is no information about the organisation (bank) of the sender of money in the documents based on which the payment and (or) money transfer is made, Part 5 shall not fill out.

Column 5.3 indicates the two-letter code of the country of the organisation (bank) of the sender of money or the beneficiary in accordance with the national classifier of the Republic of Kazakhstan NC RK ISO 3166-1 "Codes for representing the names of countries and units of their administrative-territorial divisions. Part 1. Country codes. For intra-bank currency transactions, the code "KZ" shall be indicated.

7. Parts 6 and 7 of the Form contain information about the sender of money or the recipient of money under a currency contract. If the sender (recipient) of money under the currency contract matches the sender of money (beneficiary) under the payment document, then in part 6 (7) information shall be filled in similarly to part 2 (3) of the Form.

Columns 6.3 and 7.3 indicate the two-letter code of the country of registration (for a legal entity, branch (representative office) of a legal entity) or country of permanent residence (for an individual on the basis of citizenship or a right granted in accordance with the legislation of the Republic of Kazakhstan or a foreign state) of the sender or recipient money under a currency contract in accordance with the national classifier of the Republic of Kazakhstan NC RK ISO 3166-1 "Codes for representing the names of countries and units of their administrative-territorial divisions. Part 1. Country codes.

Columns 6.4, 6.5, 7.4 and 7.5 shall be filled in in accordance with the Rules for the use of codes of sectors of the economy and the purpose of payments.

8. Part 8 of the Form contains additional information that is not included in parts 1, 2, 3, 4, 5, 6 and 7 of the Form: information about the investment object, issuer of securities, country of the



property, special payment terms, date of crediting money to the account of storage of instructions of the sender under the currency legislation.

9. The absence of clarifying information in part 8 of the Form is not a violation. Inclusion in the Form of currency transactions in the amount less than the established threshold value is not a violation.
10. In the absence of information for the reporting period, the Form is submitted with zero values.
11. Corrections (changes, additions) to the Form shall be made within 1 (one) month after the submission deadline.



Annex 2 to Schedule 5

Report on the monetary movement on clients' bank accounts in foreign currency

Name of AIFC Bank/STB of RK

BIN of AIFC Bank/STB of RK

Frequency: monthly

Reporting period: on "____" _____ 20____

Submission deadline: monthly until the 10th (tenth) day (inclusive) of the month following the reporting

Form

in currency units

№	№	Line code	Total					1					...						
	Client name		Total (teng e)	from which by currency type (in currency units)				Total (teng e)	from which by currency type (in currency units)				Total (ten ge)	from which by currency type (in currency units)					
	Business identification number (BIN) of the client			U S D	E U R	R U B	C N Y		U S D	E U R	R U B	C N Y		U S D	E U R	R U B	C N Y		
	Indicator name \ Bank account currency																		
	A																	B	C
1	Balance at the beginning of period	100000																	
2	Receipt to clients' bank accounts in foreign currency, total	210000																	
3	from:																		
4	residents	211000																	
5	including operations:																		
6	sale of goods and intangible assets	211110																	
7	provision of services	211120																	
8	receipt of the principal amount of the debt and income on loans issued	211130																	
9	attracting loans from resident banks	211140																	
10	operations with securities, bills of exchange and contributions providing participation in capital:	211150																	
11	other money transfers	211160																	
12	non-residents	212000																	
13	including operations:																		
14	sale of goods and intangible assets	212110																	
15	provision of services	212120																	
16	receipt of the principal amount of the debt and income on loans issued	212130																	
17	attraction of loans	212140																	
18	operations with securities, bills of exchange and contributions providing participation in capital:	212150																	



1 9	other money transfers	212160															
2 0	money transfers by customers from their bank accounts	210300															
2 1	which are opened in:																
2 2	resident banks	210301															
2 3	non-resident banks	210302															
2 4	purchase of foreign currency for tenge	210400															
2 5	crediting cash foreign currency to own bank accounts	210500															
2 6	Withdrawal of money from clients' bank accounts in foreign currency, total	220000															
2 7	including in favor of:																
2 8	residents	221000															
2 9	including operations:																
3 0	purchase of goods and intangible assets	221110															
3 1	receiving services	221120															
3 2	issuance of loans	221130															
3 3	fulfillment of obligations under loans attracted from resident banks	221140															
3 4	operations with securities, bills of exchange and contributions providing participation in capital:	221150															
3 5	other money transfers	221160															
3 6	non-residents	222000															
3 7	including operations:																
3 8	purchase of goods and intangible assets	222110															
3 9	receiving services	222120															
4 0	issuance of loans	222130															
4 1	fulfillment of loan obligations	222140															
4 2	operations with securities, bills of exchange and contributions providing participation in capital:	222150															
4 3	other money transfers	222160															
4 4	money transfers by customers to own bank accounts	220300															
4 5	which are opened in:																
4 6	resident banks	220301															
4 7	non-resident banks	220302															
4 8	sale of foreign currency for tenge	220400															



**AIFC RULES ON CURRENCY REGULATION AND PROVISION OF
INFORMATION ON CURRENCY TRANSACTIONS IN THE AIFC**

4 9	withdrawal of cash foreign currency from their bank accounts	220500															
5 0	Balance at the end of the period	300000															
5 1	Purchase of foreign currency (including for other foreign currency), total	410400															
5 2	including for making payments and transfers in favor of non- residents	412400															
5 3	Sale of foreign currency (including for other foreign currency), total	420400															

Address _____

Phone _____

E-mail address _____

Type of activity _____

Contractor _____
surname, name and patronymic (if any) signature, phone number
Chief accountant or person authorised to sign the report

surname, name and patronymic (if any) signature, phone number
First manager or person authorised to sign the report

surname, name and patronymic (if any) signature, phone number
Date of signing the report " ____ " _____ 20 ____

Footnote. Annex 2 to Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



Guidance for Completing the Form

This section provides an explanation for properly filling out the form titled "Report on Foreign Currency Movements in Client Bank Accounts"

Part 1. General Provisions

1. This explanation outlines the standardised guidelines for completing the designated administrative data collection form titled "Report on Foreign Currency Movements in Client Bank Accounts" (hereinafter referred to as "the Form").
2. The Form should be endorsed by the primary manager or an authorised representative responsible for report signatures, the chief accountant or an authorised representative responsible for report signatures, and the executing party.

Part 2. Guidance for Completing the Form

3. The Form shall be completed for every individual bank client, encompassing an overview of their foreign currency bank account status, this includes: the balances at both the commencement and conclusion of the reporting period, with notable emphasis on alterations that occurred during the period due to transactions involving bank accounts held in US dollars, Euros, Russian rubles and Chinese yuans. The data on the total column shall be filled in tenge, the columns by types of currencies shall be filled in units of bank account currency.
4. In instances where the AIFC Bank and/or STB of RK initiate a payment (transfer) on behalf of a client in a currency differing from that of the client's bank account, the transaction should be documented based on its actual purpose, rather than being treated as a currency conversion.
5. When completing the Form, adhere to the following conditions:

for all rows of the table, columns 1, 2, 3, 4, 5 are equal to the sums of values for all clients;

line with code 100000 = lines with code 300000 for the previous reporting period;

line with code 300000 = line with code 100000 + (line with code 210000 - line with code 210400) + line with code 410400 - (line with code 220000 - line with code 220400) - line with code 420400;

line with code 210000 = line with code 211000 + line with code 212000 + line with code 210300 + line with code 210400 + line with code 210500;

line with code 211000 = line with code 211110 + line with code 211120 + line with code 211130 + line with code 211140 + line with code 211150 + line with code 211160;

in line with code 211140, operations to attract loans from resident banks also include loans attracted from the reporting bank;

line with code 212000 = line with code 212110 + line with code 212120 + line with code 212130 + line with code 212140 + line with code 212150 + line with code 212160;

line with code 210300 = line with code 210301 + line with code 210302;

in the line with code 210301, transfers by clients of money from their bank accounts opened with resident banks also include transfers by clients of money from a bank account opened with the



reporting bank (intrabank transfers);

line with code 220000 = line with code 221000 + line with code 222000 + line with code 220300 + line with code 220400 + line with code 220500;

line with code 221000 = line with code 221110 + line with code 221120 + line with code 221130 + line with code 221140 + line with code 221150 + line with code 221160;

in the line with code 221140, the operation to fulfill obligations on loans attracted from resident banks also includes operations to fulfill obligations on loans attracted from the reporting bank;

line with code 222000 = line with code 222110 + line with code 222120 + line with code 222130 + line with code 222140 + line with code 222150 + line with code 222160;

line with code 220300 = line with code 220301 + line with code 220302;

in the line with code 220301, transfers by clients of money to their bank accounts opened with resident banks also include transfers by clients of money to their bank account opened with the reporting bank (intrabank transfers);

line with code 410400 > = line with code 412400.

6. Corrections, alterations, or additions to the data within the Form should be made within 1 (one) month following the submission deadline.
7. If information is unavailable for the reporting period, the Form should be submitted with zero values.



AIFC RULES ON CURRENCY REGULATION AND PROVISION OF
INFORMATION ON CURRENCY TRANSACTIONS IN THE AIFC

Annex 3 to Schedule 5

Report on transactions of resident clients with securities of foreign issuers, with securities issued by residents in accordance with the legislation of other states and on their territory, and on transactions of non-resident clients with securities issued by residents of the Republic of Kazakhstan

<u>Name of AIFC participant</u>				
<u>Address</u>				
<u>BIN</u>				
<u>Name of Implementing Officer of the AIFC participant</u>				
<u>Period</u>	<u>Number of quarter</u>		<u>Year</u>	
<u>Phone</u>				
<u>E-mail</u>				
<u>Type of activity</u>				

№	Transaction code	ISIN	Account holder type code		At the beginning of the reporting period		Financial transactions							
					amount	value of the security	primary market purchase		redemption / redemption by the issuer		buying on the secondary market		sale on the secondary market	
			Country code	Economy sector code КИ			amount	value of the security	amount	value of the security	amount	value of the security	amount	value of the security



AIFC RULES ON CURRENCY REGULATION AND PROVISION OF
INFORMATION ON CURRENCY TRANSACTIONS IN THE AIFC

<u>1</u>	<u>2</u>	<u>3</u>	<u>4</u>	<u>5</u>	<u>6</u>	<u>7</u>	<u>8</u>	<u>9</u>	<u>10</u>	<u>11</u>	<u>12</u>	<u>13</u>	<u>14</u>	<u>15</u>
<u>Other operations</u>				<u>Cost changes</u>	<u>At the end of the reporting period</u>		<u>Investment income</u>		<u>Commission received</u>	<u>Name of the asset/financial instrument</u>	<u>Issuer's name</u>	<u>Currency of issuance</u>		
<u>on crediting a security</u>		<u>write-off of a security</u>			<u>amount</u>	<u>value of the security</u>	<u>Accrued in the reporting period</u>	<u>Received in the reporting period</u>						
<u>amount</u>	<u>value of the security</u>	<u>amount</u>	<u>value of the security</u>											
<u>16</u>	<u>17</u>	<u>18</u>	<u>19</u>										<u>20</u>	<u>21</u>

Transaction code - 1111. Securities issued by residents in the Republic of Kazakhstan and owned by a non-resident customer of an AIFC participant;

Transaction code - 2220. Securities issued by non-residents and owned by an AIFC participant or a client-resident of an AIFC participant;

Transaction code - 2120. Securities issued by residents abroad and owned by the AIFC participant or the client-resident of the AIFC participant;

Transaction code - 2121. Securities issued by residents abroad and held by a client which is a non-resident of an AIFC participant.

Footnote. Annex 3 to Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



Annex 4 to Schedule 5

Information on contracts on the basis of and pursuant to which currency transactions of capital movements are carried out

The information is provided under currency contracts, on the basis of and pursuant to which currency transactions of capital movements are carried out, for an amount equal to or exceeding the equivalent of USD 500,000. The equivalent in USD is calculated at the market exchange rate (cross-rate) on the effective date of the contract.

The information is provided according to the following structure:

Name of AIFC participant				
Address				
BIN				
Name of Implementing Officer of the AIFC participant				
Period	Number of month		Year	
Phone				
E-mail				
Type of activity				

1. Information on financial loans attracted by AIFC participant from a non-resident (issued by AIFC participants to a non-resident)

No	Indicator name	Information about the financial loan 1	Information about the financial loan 2
A	B	1	2
1	Contract identification data (name, number, date)		
2	Aim and purpose of financing under the contract (if specified in the contract)		
3	Effective date of the contract		
4	Resident status under the contract (lender/borrower/agent)		
5	Non-resident(s)-participant(s) of the contract (name)		
5.1	Non-resident status under the contract (lender/borrower/agent)		
5.2	Relation to the resident party to the contract (affiliation)		
5.3	Name/country code of the non-resident's registration country		
6	Currency of a contract		
7	Contract amount (in thousands of units of the contract currency)		
8	Date of repayment of the loan under the contract		
9	The interest rate (in the case of a fixed interest rate, % per annum is indicated, in the case of a floating interest rate, the basis of its calculation and the margin size are indicated)		
10	Debt repayment schedule (thousands of units of the currency contract)		
11	Note		



**AIFC RULES ON CURRENCY REGULATION AND PROVISION OF
INFORMATION ON CURRENCY TRANSACTIONS IN THE AIFC**

Footnote. Annex 4 to Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



Annex 4 to Schedule 5

**Information on contracts on the basis of and pursuant to which currency transactions of
capital movements are carried out**

2. Information about participation of a non-resident in the capital of AIFC participant (AIFC participant in the capital of a non-resident), as well as on transactions involving the acquisition from a non-resident (sale to a non-resident) by an AIFC participant of shares, participatory interests in the capital of a third party"

No	Indicator name	Information about capital participation 1	Information about capital participation 2
A	B	1	2
1	Contract identification data (name, number, date)		
2	Type of participation in the capital (acquisition of equity, units, shares, participatory inputs, etc.)		
3	Share of participation based on the results of the transaction, as a percentage		
4	Effective date of the contract		
5	Resident status under the contract (investor/investment object/buyer/seller)		
6	Investor (name or full name)		
6.1	Residency indicator		
6.2	BIN for residents		
6.3	Country of legal registration for non-residents		
7	Investment object (name)		
7.1	Residency indicator		
7.2	BIN for residents		
7.3	Country of legal registration for non-residents		
8	Seller (name or full name)		
8.1	Residency indicator		
8.2	BIN for residents		
8.3	Country of legal registration for non-residents		
9	Buyer (name or full name)		
9.1	Residency indicator		
9.2	BIN for residents		
9.3	Country of legal registration for non-residents		
10	Currency of a contract		
11	Contract amount (in thousands of units of the contract currency)		
12	Note		

Footnote. Annex 4 to Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



Annex 4 to Schedule 5

**Information on contracts on the basis of and pursuant to which currency transactions of
capital movements are carried out**

3. Information on other capital transactions of an AIFC participant

N	Indicator name	Contract information 1	Contract information 2
A	B	1	2
1	Type of transaction (ownership of real estate, exclusive right to intellectual property, joint venture, gratuitous transfer of money and other currency values)		
2	Identification of the contract (name, number, date)		
3	Non-resident(s)-contracting parties (name or surname)		
4	Non-resident's country of registration (code)		
5	Currency of the contract		
6	Contract amount (in thousands of units of the contract currency)		
7	Brief description of the operation		
8	Note		

Explanation of completion:

1. non-resident to resident ratio is selected from the list:

- 1) _direct ownership by non-resident of 10 (ten) per cent or more of voting shares, votes of resident participants;
- 2) _indirect ownership by non-resident of 10 (ten) percent or more of voting shares, votes of resident participants;
- 3) _direct ownership by a resident of 10 (ten) per cent or more of voting shares, votes of non-resident participants;
- 4) _indirect ownership by a resident of 10 (ten) per cent or more of voting shares, votes of non-resident participants;
- 5) _ resident and non-resident do not have any control or influence over each other but are controlled or influenced by the same investor owning directly or indirectly at least 10 (ten) per cent of voting shares, votes of participants of a resident;
- 6) _cases not specified in subparagraphs 1), 2), 3), 4) and 5) of this paragraph.

10. Debt repayment schedule (in thousand units of the loan currency):

Quarter, year	Repayment of principal	Payment of remuneration
Total		

Footnote. Annex 4 to Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



Annex 5 to Schedule 5

List of AIFC participants which opened deposit accounts in STB

<u>Name of STB of RK</u>				
<u>Address</u>				
<u>BIN</u>				
<u>Name of Implementing Officer of the STB of RK</u>				
<u>Period</u>	<u>Number of month</u>		<u>Year</u>	
<u>Phone</u>				
<u>E-mail</u>				
<u>Type of activity</u>				

№	IIN/ BIN	Status of the AIFC participant	Account type	Currency of an account	Date of opening an account

Footnote. Annex 5 to Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.



Annex 6 to Schedule 5

Report on the volume of investments of AIFC participants providing investment
management services

Name of the AIFC body	AFSA			
Address				
BIN				
Reporting period	Number of quarter		Year	
Division of AIFC body				
Phone				
E-mail				
Type of activity	Investment management			

№	Number of AIFC participants \ Investment managers	Volume of assets under management	
		At the beginning of the reporting period	At the end of the reporting period
1	2	4	5

Footnote. Schedule 5 as amended in accordance with the AIFC Rules On Amendment to the AIFC Rules on Currency Regulation and Provision of Information on Currency Transactions in the AIFC dated 15 February, 2024 № 9.